

RETAILER'S LIMITED WARRANTY

NEW MANUFACTURED HOME INSTALLATION

Subject to, and conditioned upon, the PURCHASER'S OBLIGATIONS set forth herein below, RETAILER does hereby warrant to PURCHASER in connection with the sale and purchase of the manufactured home described herein below:

1. **The Installation of the new manufactured home described herein below at the initial home site will be completed in accordance with all standards, rules, regulations, administrative orders, and requirements of the Texas Department of Housing & Community Affairs.** "Installation" means and shall include the temporary or permanent construction of the foundation system and the placement of a manufactured home or manufactured home component on the foundation. The term includes supporting, blocking, leveling, securing, anchoring, and properly connecting multiple or expandable sections or components and making minor adjustments. Installation does not include, without limitation or exclusions, the connection of water, sewer, electricity, gas (natural or LPG) or other utility service to the home.
2. Appliances and equipment included with the sale of the home and installed by the RETAILER are, or will be, installed in accordance with the instructions or specifications of the manufacturers of the appliances or equipment and free from defects in materials or workmanship.
3. Unless provided specifically in writing, this warranty expressly disclaims any warranty regarding cosmetic defects.
Cosmetic defects are any matters of flaw or finish, appearance, materials or workmanship not covered by the federal MANUFACTURED HOME CONSTRUCTION AND SAFETY STANDARDS.
4. This warranty, subject to PURCHASER'S OBLIGATIONS, is in effect until the first anniversary of the later of the date of initial installation of the home at the consumer's home site or the closing of the consumer's purchase or acquisition of the home. **It Is VOID**
If PURCHASER fails to comply with all of PURCHASER'S OBLIGATIONS.
5. RETAILER shall take appropriate corrective action to fulfill its warranty obligations as to installation of the home within a reasonable period of time following receipt of a **written** notice from PURCHASER as required by department rules to fulfill the written warranty obligation. The installer or retailer has no obligation or liability under the person's warranty for any defect described in a written notice received from the consumer more than two years after the later of the date of purchase or the date of installation.



PURCHASER'S OBLIGATIONS

As consideration for the purchase of the manufactured home and for the retailer's warranty, PURCHASER understands and agrees to abide by the following
PURCHASER'S OBLIGATIONS; PURCHASER understands and agrees that this RETAILER'S LIMITED WARRANTY is NULL AND VOID if PURCHASER does NOT comply with these obligations.

1. PURCHASER is responsible and liable for (i) obtaining all permits, clearances, or any other approvals, and (ii) paying all fees or charges, if any of such are required or assessed by any local jurisdiction, homeowner's association, or deed restriction in connection with the installation of the home at the home site.
2. PURCHASER is responsible for determining the location of underground pipes or lines
3. PURCHASER shall NOT move the home from its foundation system during the warranty period; PURCHASER shall not alter or modify the foundation system during the warranty period without the express written authorization of RETAILER.

PURCHASER understands if PURCHASER moves the home, the warranty does NOT apply to any defect or damage caused by moving the home from the initial installation site.

PURCHASER understands that the manufacturer's warranty and the retailer's warranty are separate and that RETAILER is not responsible or liable in any way for the construction of the home or for the manufacturer's warranty responsibilities.

RETAILER gives, and there are, no other retailer warranties, either express or implied, except as specifically set forth

RETAILER shall not be liable for damages from loss of time, inconvenience, commercial or professional loss, loss of use of the manufactured home, incidental charges such as telephone calls, hotel bills, or other incidental or consequential damages.

THIS WARRANTY GIVES YOU SPECIFIC LEGAL RIGHTS BUT ALSO CREATES SPECIFIC OBLIGATIONS. YOU MAY HAVE OTHER LEGAL RIGHTS NOT SET FORTH HEREINABOVE.



PURCHASER _____ DATE _____

MH MODEL _____ ☐ Single Section ☐ Multi-Section

I.D. NOS. _____

The names and addresses of the retailer and manufacturer to which the purchaser must write for warranty service are:

(Retailer name)

(Manufacturer name)

(Retailer address)

(Manufacturer address)

(City,State,Zip)

(City,State,Zip)

X _____
(Purchaser signature)

x _____
(Co-purchaser signature)

Original must be retained in Retailer file. Make copies for Consumers and other parties.

